NON-EXCLUSIVE REFERRAL ARRANGEMENT

Referral Partnership Agreement

Between Melhek Technologies and Kenenét Consultancy

EXECUTION COPY — VERSION 2.0

This Agreement records the agreed 10% commission and excluded cost categories and is prepared for signature by both Parties.

COMMISSION
10% of eligible project implementation fees actually received by Melhek.

EXCLUDED FROM BASE
VAT, third-party software licences, hardware, and other pass-through expenses.

PAYMENT BASIS
Proportional to the corresponding eligible client payments Melhek receives.

REFERRAL CONDITION
Each client-and-project referral must be registered and accepted in writing.

Agreement ID: MEL-KEN-REF-001

Version: 2.0 — signing copy

Effective date: The date the last Party signs

01 Parties

This Referral Partnership Agreement (the "Agreement") is between:

Party A: The person or legal entity identified in Party A's execution block, doing business as Melhek Technologies, with its notice email stated in Clause 18 ("Melhek"); and

Party B: The person or legal entity identified in Party B's execution block, doing business as Kenenét Consultancy, with its notice email stated in Clause 18 ("Kenenét").

Each Party confirms that its execution block correctly identifies the person or legal entity entering this Agreement and that its signatory is authorized to sign. If a signatory acts for a legal entity, that entity is the Party.

02 Purpose and nature of relationship

This Agreement governs Kenenét's non-exclusive referrals of prospective clients to Melhek for potential digital technology projects. A referral by Melhek to Kenenét, or commission for such a referral, requires a separate written agreement. Neither Party promises a minimum number of referrals, projects, or revenue.

The word "partnership" describes this referral arrangement only. The Parties intend to create no legal partnership, joint venture, employment, franchise, or agency relationship. Each Party remains responsible for its own business, personnel, expenses, and obligations.

03 Qualified referral

A "Qualified Referral" is a prospective client and specific project opportunity that meets all of the following conditions:

- Kenenét submits it to Melhek under Clause 4.
- The client and specific project or business need are identifiable.
- The referral is made with the prospective client's permission to share the relevant contact and project information.
- Melhek accepts the referral in writing.

A referral does not qualify if the same client-and-project opportunity was already accepted from another source, or Melhek had documented substantive sales activity for that specific opportunity during the 90 days before registration. Mere prior awareness of a client does not exclude a distinct project. An existing client may be referred for a new project if that specific project meets these requirements and Melhek accepts it in writing.

Acceptance applies only to the client and project described in the registration. It does not give Kenenét an automatic commission right over the client's other or future work.

04 Referral submission and acceptance

Kenenét will submit each referral to **melhektechnologies@gmail.com**, or to another referral channel Melhek later designates in writing, including:

- Client or organization name.
- Contact name and business contact details, where authorized.
- Brief description of the project need.
- Date and context of the introduction.
- Confirmation that the client permitted the referral and sharing of the submitted details.

Melhek will confirm receipt and either accept or reject the referral in writing. Acceptance must identify the client and project, record the acceptance date, and state the referral protection expiry date. Silence, an introduction alone, or a client's later contact with Melhek does not constitute acceptance.

Melhek will respond within five business days. If more information is needed, Melhek may request it; the response period resumes when the requested information is supplied. No commission is earned unless acceptance is in writing.

05 Commission and eligible fees

For each Qualified Referral, Kenenét's commission is **10% of the Eligible Collected Implementation Fees** for the accepted project. The 10% commission rate is preserved and is not changed by this Agreement.

"Eligible Collected Implementation Fees" means implementation fees that relate to the specific project accepted in writing, that Melhek has actually received in cleared funds from the client, and that remain after project discounts or credits have been applied.

The commission base excludes:

- VAT.
- Third-party software or subscription licences.
- Hardware.
- All other pass-through expenses and reimbursements.

Any markup or handling charge directly associated with an excluded pass-through item is also excluded. For an invoice containing eligible and excluded line items, a general project discount or credit not assigned to a particular line is allocated proportionally across those line items. A partial client payment is allocated proportionally across the resulting net line-item balances unless the client's remittance instruction identifies a different allocation and Melhek records it consistently.

COMMISSION EXAMPLE

If an invoice has **ETB 100,000** in eligible implementation fees and **ETB 100,000** in excluded costs, a payment of **ETB 100,000** is 50% of the invoice. With proportional allocation, ETB 50,000 is eligible collected fees and the commission is **ETB 5,000**.

The commission is calculated after discounts. No commission is due on unpaid, waived, written-off, refunded, or cancelled amounts.

Commission applies only to the project scope described in the accepted registration and the client contract for that project. A separate project, renewal, recurring support or maintenance service, or later unrelated work is not commissionable unless the Parties register and accept it separately in writing. A change order is included only if Melhek expressly accepts it in writing as commissionable and identifies the fee.

06 Commission statements, payment timing, and method

Melhek will provide a statement showing client payments received, excluded amounts, the eligible collected amount, and commission due.

Melhek will issue the commission statement and pay each commission within 10 business days after receiving the corresponding eligible client payment in cleared funds. If a client pays in installments, commission will be paid proportionally after each installment is received. "Business Day" means a day on which commercial banks are generally open for ordinary business in Addis Ababa, excluding weekends and public holidays observed by those banks.

Payment will be made by lawful bank transfer to Kenenét's nominated account, in the currency agreed in writing for the accepted project. Each Party is responsible for its own tax filings. Any withholding required by law may be deducted, with applicable withholding evidence provided to Kenenét. Any VAT applicable to the commission itself will be handled as required by law and against valid tax documentation.

07 Refunds, cancellations, and client non-payment

No commission is due on an amount Melhek does not receive. If Melhek refunds or credits a client after paying commission on that amount, Kenenét will return the corresponding commission or allow it to be credited against future commissions.

Kenenét will repay or authorize the credit within 15 business days after receiving Melhek's calculation and supporting statement. The adjustment is limited to commission attributable to the amount actually refunded or credited. If there are no future commissions to offset, repayment will be made by bank transfer.

08 Responsibilities

Kenenét will:

- Make introductions honestly and with the client's permission.
- Provide accurate referral information.
- Avoid promising prices, delivery dates, features, or outcomes on Melhek's behalf.
- Not collect project payments for Melhek.
- Promptly disclose any potential conflict of interest relevant to a referral.

Melhek will:

- Decide independently whether to pursue, scope, price, contract for, or decline a referred project.
- Manage its client proposals, contracts, delivery, invoices, and collections.
- Provide commission statements for accepted referrals.
- Promptly notify Kenenét of material client payments, cancellations, or refunds affecting commission.

Neither Party guarantees that a referral will become a client or that a project will be profitable.

09 Confidentiality and client information

Each Party will protect the other Party's non-public commercial, technical, financial, and client information; use it only for this referral arrangement; and share it only with personnel or advisers who need it and are bound to protect it.

These obligations do not cover information the receiving Party can show was public without breach, already lawfully known, independently developed, or lawfully received from another source.

Each Party will handle personal information only for the referral purpose and in accordance with applicable Ethiopian law, including applicable lawful-basis, transparency, security, data-subject rights, and retention requirements. Kenenét will obtain the prospective client's permission to share referral details with Melhek. On request or termination, each Party will return or securely delete the other Party's confidential information, subject to lawful record-retention requirements.

Confidentiality obligations continue for three years after termination. Trade secrets remain protected for as long as they qualify as trade secrets.

10 Non-exclusivity

Either Party may work with other referral sources, providers, and clients, including in similar fields, provided it complies with this Agreement and does not misuse the other Party's confidential information.

11 Independent contractors and no authority to bind

Each Party acts as an independent contractor. Neither Party may make a commitment, representation, warranty, financial promise, or client contract in the other Party's name.

Neither Party may represent that it is an agent, employee, legal partner, or authorized representative of the other.

12 Intellectual property and names

Each Party retains ownership of its names, logos, materials, software, and other intellectual property. No ownership is transferred by this Agreement.

A Party may use the other Party's name or logo in marketing only with that Party's prior written approval. Any permission to use a logo is limited, revocable, and subject to the owner's brand instructions.

13 Term and termination

This Agreement continues for an initial term of 12 months and renews for successive 12-month periods unless either Party gives 30 days' written notice of non-renewal.

Either Party may terminate for convenience on 30 days' written notice. A Party may terminate immediately for serious misconduct or unlawful conduct connected with this Agreement. For another material breach that can be remedied, the breaching Party will have 10 business days after written notice to remedy it; the non-breaching Party may terminate if it remains uncured.

14 Accepted referrals after termination

Termination does not affect commissions already accrued or the remaining protection period for a Qualified Referral accepted in writing before termination, subject to the conditions below.

Each accepted referral is protected for 180 calendar days from Melhek's written acceptance, whether or not this Agreement remains in force during that period. The client must sign a contract for the specific accepted project within those 180 days. If it does, commission remains payable on eligible installment payments Melhek later receives under that contract, including payments received after this Agreement ends or the protection period expires. If no contract is signed within the protection period, the referral expires and a later opportunity requires a new written registration and acceptance. Termination does not shorten an unexpired protection period.

No commission is created for referrals submitted but not accepted before termination, or for new projects or unrelated work that are not separately accepted in writing.

15 Disputes

The Parties will first attempt to resolve a dispute through good-faith discussion between authorized representatives.

The Parties will allow 30 days for good-faith discussion. They may proceed to mediation in Addis Ababa if both agree. If the dispute is not resolved, either Party may refer it to a court with competent jurisdiction in Ethiopia.

16 Governing law

This Agreement is governed by the laws of the Federal Democratic Republic of Ethiopia.

17 Amendments and entire agreement

This Agreement, including any referral accepted in writing under Clause 4, records the entire agreement between the Parties about this referral arrangement and replaces prior discussions on that subject.

Any amendment must be in writing and approved by authorized representatives of both Parties. If a provision is unenforceable, the remaining provisions continue to apply to the extent permitted by law.

18 Notices

Formal notices under this Agreement must be sent by email to the designated business addresses:

Melhek: melhektechnologies@gmail.com.

Kenenét: kenenetconsultancy@gmail.com.

Either Party may update its notice email by written notice to the other. An email notice is received when delivery is confirmed or acknowledged, subject to mandatory legal rules.

19 Counterparts and electronic execution

The Parties may sign separate paper copies, which together form one Agreement. They may also use an electronic-signature method they mutually agree to use for this Agreement.

For electronic execution, the agreed method must record each signer's identity and authority, clear intention to sign, the exact Agreement version, timestamps, and an audit record. A checkbox or typed name may form part of that process, but this Agreement does not characterize either alone as a qualified digital signature. The Parties should confirm the chosen method and its legal effect before execution.

– Execution and signatures

Each signatory confirms authority to sign for the named Party. The Effective Date is the date of the last signature.

For Party A — Melhek Technologies

Full legal name of person or entity:

_____

Authorized representative: _____

Title: _____

Business email: _____

Signature: _____

Date: _____

For Party B — Kenenét Consultancy

Full legal name of person or entity:

_____

Authorized representative: _____

Title: _____

Business email: _____

Signature: _____

Date: _____

Execution copy · Version 2.0 · Effective when the last Party signs.